

23NWCV03000 23NWCV03000

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-08-25

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Adjudication of the second cause of action for fraudulent concealment ("MSA").

On October 7, 2025, the Court signed the parties' Joint Stipulation to Continue Trial and All Related Dates. Trial was continued to May 18, 2026.

This MSA was originally set for hearing on October 23, 2025. At the hearing, the Court continued the MSA hearing to April 16, 2026 pursuant to Code of Civil Procedure section 437c, subdivision (h). (See 10/23/25 Minute Order.)

In advance of that hearing, Plaintiff Quennie Yu ("Plaintiff") filed an Affidavit of Timothy Lupinek in Opposition to Defendant's MSA. Plaintiff's counsel, Timothy Lupinek, declared that Defendant failed to produce its Person Most Qualified (PMQ) for deposition. (Lupinek March Decl., ¶ 7.) The Court granted Plaintiff's Motion to Compel Deposition of Defendant's PMQ on October 28, 2025, requiring that the deposition take place by February 26, 2026. (Lupinek March Decl., ¶ 3, Exh. A.) Despite Plaintiff's efforts to meet and confer, Defendant did not produce its PMQ on that date. (Lupinek March Decl., ¶¶ 4-5, Exhs. B-C.) Plaintiff has filed a Motion to Compel Compliance with the Court's October 28, 2025 Order ("Motion to Compel Compliance"). The Motion to Compel Compliance is currently set for November 5, 2026.

On April 16, 2026, the Court continued the hearing on the MSA to August 26, 2026, based on Defense counsel's representation that its PMQ could be available in May 2026 for deposition. (Lupinek August Decl., ¶ 4.) However, the parties have agreed that the deposition will take place on August 24, 2026. (Lupinek August Decl., ¶ 5.) The Court also continued trial to the current date of October 19, 2026.

Plaintiff requests that the MSA be denied, or alternatively, continued to allow Plaintiff the opportunity to depose Defendant's PMQ. (Lupinek August Decl., ¶ 9.)

The Court will confer with the parties to determine a new Motion hearing date and trial date.